

Kallu Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 18 September 2023 · 2023:AHC:179531-DB · Writ - C No. 31689 of 2023 · **Writ disposed; 6.14 application to be considered and instalment fixed.**

HEADNOTE

Writ for quashing a recovery disposed without merits. The petitioner, ready to pay the complete amount in instalments, was directed to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005; if filed, the application shall be considered and the instalment fixed.

FACTUAL SUMMARY

Kallu Yadav approached the Allahabad High Court in a writ petition for quashing of a recovery dated 15 August 2023, impleading the State of Uttar Pradesh and three others. At the hearing his counsel stated that he was ready to pay the complete amount in instalments. Counsel for the electricity department submitted that the petitioner had an efficacious remedy of getting the instalments fixed under clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments on a recovery the consumer is ready to pay

HOLDING

Where a consumer who had sought quashing of a recovery states that he is ready to pay the complete amount in instalments, and the licensee points to clause 6.14 of the U.P. Electricity Supply Code, 2005, the writ is disposed of without examining the merits of the recovery. If the consumer files an application under that clause, the application shall be considered and the instalment fixed. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The electricity department identified clause 6.14 as the remedy for fixing instalments, and the Court directed that an application under that clause, if filed, be considered and the instalment fixed. ¶ 1

clause-6.14-instalments-on-accepted-dues Having stated readiness to pay the complete recovery amount, the petitioner was sent to clause 6.14 for instalments instead of a decision on the prayer to quash the recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY DATED 15 AUGUST 2023 WAS LIABLE TO BE QUASHED

The Court declined to go into the merits and disposed of the writ on the clause 6.14 application. ¶ 1

NOT DECIDED — THE NUMBER AND SCHEDULE OF INSTALMENTS

Left to be fixed by the authority on an application under clause 6.14. ¶ 1